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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2417/14 - 2024 දෙසැම්බර් මස 31 වැනි අඟහරුවාදා - 2024.12.31

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PART I : SECTION (I) — GENERAL

Government Notifications

L.D.- B 3/2013 (ii)

MERCHANT SHIPPING ACT, No. 52 OF 1971

REGULATIONS made by the Minister of Ports, Shipping and Aviation under section 321 of the Merchant Shipping Act, No. 52 of 1971 read with sections 44 and 139 of the said Act.

BIMAL NIROSHAN RATHNAYAKE,

Minister of Transport, Highways, Ports and Civil Aviation.

Colombo,
30th December, 2024.

Regulations

1. These regulations may be cited as the Merchant Shipping (Non-Convention Vessel) Regulations, No. 1 of 2024.

PART 1

Applicability of these regulations

2. (1) Subject to the provisions of sub-regulations (2) and (3) of this regulation, these regulations shall apply to Non-Convention Vessels which are entitled to fly the Sri Lanka flag and to foreign Non-Convention Vessels when in Sri Lanka waters.

(2) These regulations shall not apply to :-

- (a) ships of war and troopships; and
- (b) fishing vessels.

(3) The Parts II, IV, V, VI and VII of these regulations shall not apply to vessels categorised in Group 4 – Vessels in private use for sport or pleasure (not for hire) referred to in Merchant Shipping (Vessel Classification and Certification) Regulations, No.3 of 2024 published in the *Gazette* Extraordinary No.2417/16 of December 31, 2024.

(4) Group 4 vessels referred to in sub-regulation (3) imported or built after the entry into force of these regulations for use in Sri Lanka shall conform to the Technical Codes given in Part III of these regulations.

3. The Director-General of Merchant Shipping (in these regulations referred to as the “Director General”) shall be responsible for the administration of these regulations.

PART II

Registration

4. (1) Every vessel to which these regulations apply shall not be operated without having on board the following valid certificates:-

- (a) certificate of registration;
- (b) certificates as required by the Merchant Shipping (Vessel Classification and Certification) Regulations, No. 3 of 2024, published in the *Gazette* Extraordinary No. 2417/16 of December 31, 2024;
- (c) P and I Insurance Certificate; and
- (d) crew licences and training certificates.

(2) Any person who contravenes sub-regulation (1) commits an offence under these regulations and shall be liable on conviction to a fine not exceeding rupees five hundred thousand.

5. (1) Every application for registration of a Non-Convention Vessel shall be forwarded to the Registrar of Ships along with the appropriate fee referred to in Schedule III to these regulations as prescribed by the Director-General.

(2) The application shall be made in the form as set out in Schedule I to these regulations.

(3) The application shall be supported with the following documents:-

- (a) a Record of Compliance against the appropriate Technical Code issued by an approved recognised organisation or a certifying body. Vessels built in accordance with an equivalent to the rules of the Standard Classification Society rule as specified in the Technical Codes shall be acceptable under these regulations, subject to complying with all other requirements of the Codes;
- (b) Certificate of Survey and Tonnage Measurement;
- (c) Tonnage Certificate, if the vessel is over 24 meters;
- (d) Title documents (Bill of Sale);
- (e) Certificate of Incorporation of the Company, if registering on behalf of a company;
- (f) Deletion Certificate, if previously registered on another register;

(g) Confirmation of Radio Call Sign (as applicable); and

(h) a comprehensive and a valid P&I insurance cover for the vessel obtained from an insurance company acceptable to the Insurance Board of Sri Lanka, established under the Regulation of Insurance Industry Act, No. 43 of 2000 covering its crew members, passengers and cargo.

(4) An application and supporting documents shall be reviewed by the Registrar of Ships and if found to be in conformity, a Provisional Certificate of Registration shall be issued for a period of six months pending completion of the survey.

(5) Upon completion of vetting of the record of compliance by the Director-General and issue of the appropriate Technical Code Certificate, a Full Certificate of Registration shall be issued as referred to in Schedule II to these regulations.

(6) The Certificate of Registration shall be valid for the life of the vessel, and shall only be re-issued upon change of ownership or substantial alterations to the vessel.

6. (1) Every vessel to which these regulations apply shall not exceed the maximum number of persons permitted to be on board as stated in the vessels certification while the vessel is in operation. In the case of Non-Passenger Vessels, the vessel may carry crew and special personnel or a combination of passengers and crew and special personnel up to the vessels maximum number of permitted persons:

Provided, that the provisions of this sub-regulation shall not apply to a vessel carrying the maximum number of passengers which is less than twelve.

(2) Any person who contravenes sub-regulation (1) commits an offence under these regulations, and shall be liable on conviction to a fine not exceeding rupees five hundred thousand or to an imprisonment of either description for a period not exceeding two years or to both such fine and imprisonment.

7. (1) Visiting vessels that are in Sri Lanka for participating in races or regattas shall be exempted from registration under these regulations.

(2) Visiting vessels that are in Sri Lanka as support boats for boats in races or regattas are required to obtain a Temporary Operational Registration valid for six months from the Director-General.

(3) Applications for Temporary Operational Registration shall be made using the application form referred to in Schedule I to these regulations and the applicable fee and supported with the following documents:-

(a) a valid survey report issued by the national authority of the flag state; and

(b) a comprehensive P & I insurance cover for the vessel.

PART III

Technical Codes and Technical Panel of Experts

8. (1) All Non-Convention Vessels registered in Sri Lanka shall comply with the applicable Technical Codes prescribed in sub-regulation (2) published by the Director-General.

(2) Technical Codes are as follows :-

(a) Internal Waters Craft Code;

(b) Small Craft Code (up to length 24 meters);

(c) Large Non-Convention Craft Code (length over 24 meters); and

(d) Large Yacht Code (length over 24 meters).

9. (1) The Minister in the exercise of the powers conferred on him by section 12 of the Merchant Shipping Act, No. 52 of 1971 (in these regulations referred to as the “Merchant Shipping Act”) shall appoint a Technical Panel of Experts headed by the Director-General with the delegated powers under the Merchant Shipping Act to publish and maintain the Technical Codes and such relevant codes shall be deemed as published under these regulations.

(2) The functions of the Technical Panel shall be as follows:-

- (a) to review the Technical Codes after one year from first publication and make recommendations for any amendments;
- (b) to review the Technical Codes every five years and make amendments, unless amendments are necessitated for safety reasons; and
- (c) to provide interpretations of the applicable Codes as requested by the Director-General.

(3) The Technical Panel referred to in sub-regulation (1) shall comprise of four persons representing the professional expertise areas of Naval Architecture, Marine Engineering, master mariner and Boat Building Technology.

(4) The panel members so appointed shall be professionally qualified and experienced and shall hold full-membership (minimum as a member) of an appropriate professional body such as :-

- (a) The Company of Master Mariners of Sri Lanka;
- (b) Society of Chief Engineers of Sri Lanka;
- (c) The Royal Institution of Naval Architects (UK);
- (d) The Society of Naval Architects and Marine Engineers (USA);
- (e) The Nautical Institute (UK);
- (f) Institute of Marine Engineering, Science and Technology (UK); and
- (g) Boat Building Technology Improvement Institute (BTI) Lanka.

(5) A panel member from the Technical Panel of experts shall be appointed to serve for a period of four years and shall be entitled to remuneration for the work performed in accordance with the rates specified by the Ministry of Finance.

Part IV

Survey and Certification

10. (1) All Non-Convention Vessels shall be inspected, surveyed, certified and maintained in accordance with the applicable Technical Code.

(2) The inspection and survey of Non-Convention Vessels to which these regulations apply and issuance of appropriate certificates to such vessels shall be carried out by the Director-General.

(3) Subject to sub-regulation (3), the Director-General for the purpose of sub-regulation (1) may authorise recognised organisations or certifying bodies.

(4) Survey, inspection and certification of Non-Convention Vessels of more than 100 GT shall only be carried out by recognised organisations.

11. (1) The Director-General shall authorise recognised organisations in accordance with the provisions of the Merchant Shipping (Surveys and Certificates) Regulations, No. 01 of 2022 published in the *Gazette* Extraordinary No. 2261/49 of January 6, 2022.

(2) The Director-General shall recognise an organisation as a Certifying Body which complies with the requirements prescribed in sub-regulation (3) after conducting an audit and shall establish a written agreement with that organisation. Such agreement shall define the scope of the delegation of authority.

(3) A certifying body shall :-

- (a) be professionally qualified, experienced and resources must be available within the certifying body to carry out the range of surveys delegated to the body;
- (b) consist of professionals who hold full membership of an appropriate professional body referred to in regulation 9;
- (c) have sufficient capacity and capability for the efficient handling of the needs of Owners and Operators of vessels;
- (d) comply with sections 2.3, 2.4, 2.5, 2.6, 2.7, 2.8 and 4.2 of the Code for Recognised Organisations published by International Maritime Organisation by Resolution MSC.349(92); and
- (e) have a letter of authorisation to function as a certifying body issued by the Director-General.

(4) The Director-General shall conduct a periodical audit on the certifying bodies to verify the compliance of requirements prescribed in sub-regulation (3) of this regulation.

Part V

Manning

12. All Non-Convention Vessels in commercial operation shall be manned in accordance with the regulations in this section.

13. (1) Master and other members of the crew on board a Non-Convention Vessel shall hold appropriate licence and certificates applicable to the vessel in accordance with the Merchant Shipping (Training, Certification and Watch Keeping for Seafarers serving onboard Ships engaged on Domestic Voyages) Regulations, 2024 published in the *Gazette* No. 2417/17 of December 31, 2024 and other applicable laws.

(2) The master and crew on crafts undertaking special operations or operating in a local area shall possess licenses with the appropriate endorsements.

(3) The master or a member of the crew of vessels which operate in area category 4, 5, 6, 7, 8 or 9 shall hold an approved Certificate of Proficiency in Elementary First Aid.

(4) Masters of vessels operating in Area Category 0R, 1, 2 or 3 should hold a Certificate of Proficiency in Medical Care unless another member of the crew holds a medical or nursing qualification of an equivalent or a higher standard. The Master or nominated first-aider should undertake refresher training at least every five years.

(5) Masters of vessels operating in Area Category 0R, 1, 2 or 3 should hold a Crowd Management Training Certificate as specified in section A-V/2, of the Seafarers, Training, Certification and Watch keeping Code (STCW Code).

14. (1) The master shall before the commencement of any voyage, ensure that all persons on board are briefed, as a minimum, on the stowage and use of personal safety equipment such as life jackets, thermal protective aids and lifebuoys, and the procedures to be followed in cases of emergency.

(2) The master shall make an entry in the official log book after completion of each briefing conducted on board the ship.

15. The owner and master of a Non-Convention Vessel shall ensure that there are sufficient trained personnel on board to operate the vessel having due regard to the nature and duration of the voyage.

16. Every Non-Convention Vessel shall carry at least one person holding an appropriate Radio Operator's Certificate suitable for the radio equipment on board and the relevant area of operation.

17. (1) The minimum manning levels for each Non-Convention Vessel shall be specified by the Director-General in the certificate issued to the vessel under the applicable Technical Code.

(2) A Non-Convention Vessel to which this section applies shall not proceed on a voyage or excursion unless the manning of the vessel is in accordance with the safe manning level prescribed in the certificate referred to in sub-regulation (1).

(3) Any person who contravenes sub-regulation (2) commits an offence under these regulations and shall be liable on conviction to a fine not exceeding rupees five hundred thousand or to an imprisonment of either description for a period not exceeding one year or to both such fine and imprisonment.

(4) The application for Safe Manning requirements shall be made by the owner, or a person authorised to act on his behalf, to the Director-General and shall include a clear and concise explanation of how:-

(a) the proposed manning level has been determined;

(b) it takes account of the guidance; and

(c) it takes account of the hours of work provisions including the fatigue.

(5) In the event of any change in equipment, construction or use of the Non-Convention Vessel, which may affect the safe manning level, the owner or operator shall make an application for the re-issue.

(6) A Safe Manning level of a vessel may be withdrawn if an owner or an operator fails to submit a new proposal where a vessel changes trading area(s), construction, machinery or equipment, or operation and the method of maintenance have changed, or a vessel persistently fails to comply with the rest hours requirements referred to in sub-regulation (2) of regulation 18.

18. (1) The master shall ensure, so far as is reasonably practicable, that he and all crew members are properly rested when they begin work and obtain adequate rest when not on duty.

(2) The minimum hours of rest for anyone employed on board shall be not less than :-

(a) ten hours in any 24-hour period; and

(b) 77 hours in any seven-day period.

(3) Exceptions are allowed so long as they are agreed between the master and crew members, and provided that their health and safety, and the safety of the vessel, are not compromised. Such exceptions may take account of more frequent or longer leave periods or the granting of compensatory leave for watch keeping seafarers or seafarers working on board ships on short voyages.

19. (1) For vessels operating on the basis of watch keeping arrangements, a schedule of duties shall be drawn up by the master setting out the hours of work and rest periods.

(2) In drawing up a schedule, the master shall take the following factors into account:-

- (a) type of operation;
- (b) details of the watch keeping arrangements;
- (c) the total workload; and
- (d) the seriousness of irregular working hours and their contribution to causing fatigue and the importance of scheduling reasonably stable working hours.

(3) The master shall ensure that there is, at all times, a person with appropriate certification in charge of the navigational watch when the vessel is in operation.

Part VI

Carriage of Cargo and Safety of Navigation

20. (1) Carriage of cargo on Non-Convention Vessels shall be in accordance with the provisions of the Merchant Shipping (Carriage of Cargoes and Oil Fuels) Regulations, No. 07 of 2021, published in the *Gazette* Extraordinary No. 2261/55 of January 6, 2022.

(2) Carriage of dangerous goods on Non-Convention Vessels shall be in accordance with the provisions of the Merchant Shipping (Carriage of Dangerous Goods) Regulations, No. 08 of 2021, published in the *Gazette* Extraordinary No. 2261/56 of January 6, 2022.

(3) In relation to safety of navigation and equipment for safety of navigation, a Non-Convention Vessel shall comply with Merchant Shipping (Safety of Navigation) Regulations, No. 06 of 2021, published in the *Gazette* Extraordinary No. 2261/54 of January 6, 2022.

Part VII

Operational Requirements

21. The master of a Non-Convention Vessel shall ensure that :-

- (1) the vessel is navigated at all times in a safe and a controlled manner and all of the conditions of the Certificate of Survey are adhered to;
- (2) the applicable stability requirements are adhered to at all times;
- (3) steering gear, controls and communication systems are tested before every voyage commences and prior to entering harbour;
- (4) all hatches and openings in the hull of the vessel are kept tightly closed except when being used; and
- (5) all watertight doors in subdivision bulkheads are kept tightly closed during the navigation of the vessel except when being used for transit between compartments:

Provided however, the master may divert from the route prescribed in the Certificate or take such other steps as deemed necessary and prudent to assist vessels in distress or for other similar emergencies.

22. (1) The owner, agent, master or person in charge of a vessel involved in a marine casualty shall give notice as soon as possible to the Director-General whenever the casualty involves any of the following:-

- (a) any grounding or collision which creates a hazard to navigation, the environment or the safety of the vessel;

- (b) loss of main propulsion, primary steering or any associated component;
- (c) control system, the loss of which causes a reduction of the manoeuvring capabilities of the vessel;
- (d) an occurrence materially and adversely affecting the vessel's seaworthiness or fitness for service or route, including but not limited to fire, flooding, failure of or damage to the fixed fire extinguishing systems, lifesaving equipment, auxiliary power generating equipment or bilge pumping systems;
- (e) loss of life;
- (f) injury which requires professional medical treatment beyond first aid and, in the case of a person engaged or employed on board a vessel in commercial service, which renders the individual unfit to perform routine vessel duties; or
- (g) an occurrence resulting in damage to property estimated to be in excess of US \$10,000, including the cost of labour and material to restore the property to service condition.

(2) The notice prescribed in sub-regulation (1) shall include the name and identity number of the vessel(s) involved, the name of the vessel's owner or agent, the nature and circumstances of the casualty, the locality in which it occurred, the nature and extent of injury to persons and the damage to property.

(3) In addition to the notice required by sub-regulation (1), the owner, master, agent or person in charge of the vessel shall, within three days, provide details to the Director-General using the appropriate reporting forms specified in Schedule IV hereto.

23. (1) Every vessel shall maintain an official Logbook on board. The master shall make or should have made in the Logbook the following entries:-

- (a) details of the voyage, including course and weather conditions at least every 4 hours, and tests required in this Part (Part VII);
- (b) when a marine casualty occurs, a statement about the casualty and the circumstances under which it occurred, made immediately after the casualty when practicable to do so;
- (c) each death on board and the cause of death;
- (d) the name of each seaman who ceases to be a crew member, except by death, with the time, place, manner and the cause why the seaman ceased to be a crew member; and
- (e) details of drills and training prescribed in these regulations.

(2) The log entry required by sub-regulation (1) in respect of an abandoned ship, men overboard and fire drills shall include the following information :-

- (a) date of the drill and training; and
- (b) general description of the drill scenario and training topics.

24. The master shall not take onboard fuel having a flashpoint of 43.3 °C (110 °F) or lower, when passengers are on board.

25. Whenever an automatic pilot is used, the master shall ensure that:-

- (a) it is possible at all times to immediately establish manual control of the vessel's steering;

- (b) a competent person is ready at all times to take over steering control; and
- (c) the changeover from automatic to manual steering and vice versa is made by, or under the supervision of the master or the senior officer on watch.

26. (1) The Owner, Charterer, Operator or master of a vessel making a voyage shall:-

- (a) keep an accurate record of all persons, who embark on and disembark from the vessel, including the names and gender, distinguishing between adults, children and infants; and
- (b) keep an accurate, written count of all passengers who embark on and disembark from the vessel. Prior to departing on a voyage, the passenger count shall be deposited ashore in a well-marked location or with a representative of the owner or managing operator of the vessel.

27. (1) Before getting underway on a voyage where passengers are carried, the master of a vessel shall ensure that suitable public announcements are made informing all passengers of the following, as applicable to the vessel's operations and arrangement:-

- (a) a general explanation of emergency procedures;
- (b) the location of emergency exits and survival craft embarkation areas;
- (c) the stowage location of life jackets;
- (d) the proper method of putting on and adjusting life jackets of the type carried on the vessel including a demonstration of the proper donning of a life jacket;
- (e) the location of the instruction placard for life jackets and other lifesaving devices; and
- (f) that all passengers will be required to wear life jackets when possible hazardous conditions exist, as directed by the master.

(2) As an alternative to an announcement that complies with sub-regulation (1), the master or other designated person may:-

- (a) prior to getting underway, deliver to each passenger or, on a vessel that does not carry vehicles and that has seats for each passenger, place near each seat, a card or pamphlet that has the information listed in sub-regulation (1); and
- (b) make an abbreviated announcement consisting of:-
 - (i) a statement that passengers should follow the instructions of the crew in an emergency;
 - (ii) the location of life jackets; and
 - (iii) further information concerning emergency procedures including the donning of life jackets, location of other emergency equipment, and emergency evacuation procedures which are located on the card or pamphlet that was given to each passenger or is located near each seat.

(3) The Passenger Vessels operating on short runs of less than fifteen minutes may substitute bulkhead placards or signs for the announcement required in sub-regulations (1) and (2) where the Director-General determines that the announcements are not practical due to the vessel's unique operation.

(4) On a vessel on a voyage of more than twelve hours duration, passengers shall be instructed to put on lifejackets and go to the appropriate embarkation station during the safety orientation. Where only a small number of passengers embark at a port after the original muster has been held, these passengers shall be given the passenger safety

orientation required by sub-regulations (1) and (2) if another muster is not held.

(5) The master of a vessel shall require passengers to wear lifejackets when possible hazardous conditions exist, including, but not limited to:-

- (a) when transiting hazardous bars and inlets;
- (b) during severe weather;
- (c) in the event of flooding, fire or other events which may possibly call for evacuation; and
- (d) when the vessel is being towed.

(6) Sufficient emergency instructions shall be posted to enable passengers to know what action should be taken in the event of an emergency.

(7) Sufficient instructions on how to donned life jackets shall be posted to enable passengers to undertake this action in the event of an emergency.

(8) The master and crew of a vessel shall be familiar with the content of emergency instructions containing the actions to be taken in the event of fire, heavy weather, or man overboard conditions. Such instructions shall be available at the operating station.

(9) An emergency instruction placard containing the required information from the recommended format provided as guidance by the Director-General shall satisfy the requirements of sub-regulation (6).

(10) Except when in the opinion of the Director-General the operation of a vessel does not present any of the hazards listed, the Emergency Instruction Placard shall contain at least the applicable portions of the "Emergency Instructions" specified in Schedule V to these regulations. The emergency instructions shall be designed to take account of the equipment, arrangement, and operation of each individual vessel.

(11) Where the Director-General determines that there is no suitable mounting surface aboard the vessel, the emergency instructions need not be posted but shall be carried aboard the vessel and be available to the crew for familiarization.

(12) On a vessel of more than 24 meters in length that is required to have more than four crew members at any one time, including the master, a muster list shall be posted by the master at the operating station and in a conspicuous location in each crew accommodation space.

(13) The muster list required by sub-regulation (12) shall set forth the special duties and duty station of each crew member for various emergencies. The duties shall, as far as possible, be consistent with the regular work of the individual. The duties shall include at least the following and any other duties necessary for the proper handling of a particular emergency:-

- (a) the closing of hatches, air ports, watertight doors, vents, scuppers, and valves for intake and discharge lines that penetrate the hull, the stopping of fans and ventilating systems, and the operating of all safety equipment;
- (b) the preparing and launching of survival craft and rescue boats;
- (c) the extinguishing of fire; and
- (d) the mustering of passengers including the following:

- (i) warning the passengers;
- (ii) assembling the passengers and directing them to their appointed stations; and
- (iii) keeping order in the passageways and stairways and generally controlling the movement of the passengers.

28. (1) The master shall conduct training and drills to give sufficient instructions to make sure that all crew members are familiar with their duties during emergencies that necessitate abandoning the ship, the recovery of persons who have fallen overboard and in the event of fire onboard.

(2) On passenger vessels, the master shall conduct one abandon ship and one fire drill once every month and on all other vessels one abandon ship and one fire drill should be held every two months.

(3) Where more than 25% of the crew have not participated in a drill in the previous month on board the vessel, irrespective of the type of ship, the master shall conduct an abandon ship and a fire drill within forty-eight hours of such a crew change.

(4) Each abandon ship drill shall as far as practicable, be conducted as if there were an actual emergency and include the following:

- (a) summoning the crew to report to assigned stations and prepare for assigned duties;
- (b) summoning passengers on a vessel on an overnight voyage to muster stations or embarkation stations and ensuring that they are made aware of how the order to abandon ship will be given;
- (c) checking that lifejackets are correctly worn; and
- (d) instructions on the automatic and manual deployment of survival craft.

(5) Each rescue boat where provided, shall be launched with its assigned crew aboard and manoeuvre in the water as if during an actual man overboard situation:-

- (a) once every month, where reasonable and practicable; but
- (b) at least once within a three-month period before the vessel gets underway with passengers.

(6) Each fire drill shall as far as practicable, be conducted as if there were an actual emergency and include the following:-

- (a) summoning the crew to report to assigned stations and to prepare for and demonstrate assigned duties;
- (b) summoning passengers on a vessel on an overnight voyage to muster or embarkation stations; and
- (c) instructions in the use and location of fire alarms, extinguishers, and any other firefighting equipment on board.

29. The Owner and the master shall ensure that the following markings are provided on each vessel:-

- (a) all lifesaving and firefighting equipment shall be marked with the vessel's name;
- (b) all escape hatches and other emergency exits used as means of escape shall be marked on both sides in clearly legible letters at least 50mm (2 inches) high: "EMERGENCY EXIT, KEEP CLEAR", unless such markings are deemed unnecessary by the Director-General;
- (c) remote fuel shutoff stations shall be marked in clear, legible letters at least 25mm (1 inch) high indicating purpose of the valve and direction of operation; and

(d) watertight doors and watertight hatches shall be marked on both sides in clearly legible letters at least 25mm (1 inch) high: "WATERTIGHT DOOR – KEEP CLOSED" or "WATERTIGHT HATCH – KEEP CLOSED", unless such markings are deemed unnecessary by the Director-General.

30. Complete but simple instructions for the operation of a fixed gas fire extinguishing system shall be located in a conspicuous place at or near each pull box and stop valve control and in the space where the extinguishing agent cylinders are stored.

31. (1) Each launching appliance, each survival craft and rescue boat on a vessel shall be in good working order and ready for immediate use before the vessel leaves port and at all times when the vessel is underway.

(2) Each deck where survival craft or rescue boats are stowed or boarded shall be kept clear of obstructions that could interfere with the boarding and launching of the survival craft or rescue boat.

(3) All lifesaving equipment shall be maintained in accordance with these regulations and manufacturer's instructions.

32. (1) The Owner shall ensure that instruction manuals are available for all equipment and machinery onboard the ship.

(2) All instruction manuals, signs, notices, plans and documents relating to the safety and operation of the ship and its machinery and equipment shall be in the official languages and, where applicable, the working languages of the crew.

PART VIII

General Provisions

33. (1) The Merchant Shipping (Small Commercial Vessels) Regulations, 2017 published in the *Gazette Extraordinary* No. 2017/31 of May 4, 2017 are hereby rescinded.

(2) Certificate of Survey already issued under the Merchant Shipping (Small Commercial Vessels) Regulations, 2017 published in the *Gazette Extraordinary* No. 2017/31 of May 4, 2017 will remain valid for the duration of validity. Upon expiry of existing certificates, the vessels should be registered and certificated under these regulations.

(3) Existing vessels other than passenger vessels shall comply with these regulations not later than five years from the regulations coming into force or the expiry of the current Certificate of Survey whichever is earlier.

(4) Existing passenger vessels shall comply with these regulations within one year of the regulations coming into force or the expiry of the current Certificate of Survey whichever is earlier.

(5) Existing vessels shall by virtue of having been in operation, be deemed as being of an acceptable standard in terms of structural design for the area that they are currently operating in, and shall not be required to meet the construction and structural design standards specified in the Technical Codes referred to in regulation 8.

(6) If changes to the area of operations are required for an existing vessel, an assessment and compliance against the applicable Technical Code shall be determined by the Director-General based on the increase of risks due to the new area of operations and the risks associated with any increase in the number of persons carried on board.

(7) (a) All existing vessels shall have stability documentation in accordance with the Technical Codes;

(b) Existing Passenger Crafts shall have completed stability tests and documentation within six months from the date of publication of these regulations. The number of passengers to be carried shall be limited by stability considerations as well as the space limitations in accordance with the applicable Technical Code; and

(c) Stability documentation already provided on board an existing vessel and which meets the requirements of the applicable code shall be considered as having met the requirement of paragraph (a) of sub-regulation (7) of regulation 33.

34. In these regulations –

“Act” means the Merchant Shipping Act, No. 52 of 1971;

“boat” means a vessel of less than 24 meters in length, or a vessel of less than 150GT. It can be a boat, air cushion vehicle, sailing craft, inflatable craft etc.;

“cargo” means all items which are transported by the vessel except fuel for the vessel, ballast (either solid or liquid), consumables to be used on board, permanent outfit and equipment of the boat, stores and spare gear for the boat, crew and their personal baggage and passengers and their personal baggage, and activity related equipment;

“certifying body” means a company or a professional to whom the Director-General has delegated the examination (survey) and certification of vessels to which the Non-Convention Vessels regulations and Technical codes apply;

“craft” means having the same meaning as ship;

“domestic voyage” means a voyage from a port in Sri Lanka to the same or another port in Sri Lanka;

“existing craft” means a craft already in operation in Sri Lanka at the time these regulations come into force. This does not include any craft built before the entry into force date that has not been in operation in Sri Lanka waters;

“Gross Tonnage (GT)” means as defined by the International Convention on Tonnage Measurement of Ships 1969 and as stated on the Tonnage Certificate;

“internal Waters” means all water and waterways on the landward side of the baseline from which the territorial waters are measured;

“international voyage” means a voyage outside the territorial jurisdiction of Sri Lanka, i.e. voyages from or to a port in the territorial waters of Sri Lanka or to a port or from a port of another country;

“length” means either 96 percent of the total length on a water line at 85 percent of the least moulded depth measured from the top of the keel, or the length from the fore side of the stem to the axis of the rudder stock on that water line, whichever is greater. In a boat designed with a rake of keel, the water line on which this length is measured should be parallel to the design water line;

“nautical mile” means 1852 meters;

“Net Tonnage (NT)” as defined by the International Convention on Tonnage Measurement of Ships 1969 and stated on the Tonnage Certificate;

“Non-Convention Vessels” means Vessels for which the IMO Conventions do not apply, and vessels operating solely on domestic voyages for which the Director-General has granted exemptions from the applicable IMO Conventions that apply due to the vessels GT. Where due to the GT of the vessel or area of operation parts of IMO Conventions are applicable they would apply unless an exemption has been granted by the Director-General;

“P&I” means Protection and Indemnity Insurance;

Hull Construction Material:	
Length of Vessel:	
Gross Tonnage:	
Net Tonnage:	
Year of Build:	
Name and Address of Builder:	
Country of Build:	
Type of Propulsion:	
Installed Propulsion Power:	
Fuel:	
Proposed Area of Operation:	
Design Category of Vessel:	
Proposed Manning:	

Section 2 : Vessel History - Previous Registration Details	
Name (if Different from Section 1) :	
Previous names :	
Previous Registration Number :	
Previous Port of Registration :	
Previous Country of Registration :	
Registered Length :	

Section 3 : Details for Temporary Operational Registrations	
<i>Note:-</i> Temporary Operational Registration is available for maximum six months and is only available for the purpose specified in Regulation 7(3) of the Merchant Shipping (Non-Convention Vessel) Regulations 2023	
Purpose of Request :	

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Activities the vessel will perform while in Sri Lanka waters :	
Local Representative / Agent Details :	
Name and address of P & I Insurance : (Insurance certificate to be attached)	

Section 4 : Details of the Applicant	
Name of Applicant :	
Address of Applicant :	
Telephone Number :	
Email :	
Name and Address of Owner : (If vessel is owned by corporate entity)	
Name/address and Nationality of Chairman/ President :	
Names/ Address and Nationality of Directors :	

I..... of herewith submit the application for

registration of the vessel mentioned herein. I certify that the above-mentioned particulars are true and accurate to the best of my knowledge and belief.

Name:

Signature :

Date:

(Regulation 5(5))

SCHEDULE II

DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA
CERTIFICATE OF REGISTRATION - NON-CONVENTION VESSELS
PROVISIONAL / TEMPORARY OPERATIONAL / FULL

Type of Vessel : ...*RIB / Motor / Sail / Motor or Sail Catamaran*.....
Vessel Group :
Area of Operation :

Particulars of Vessel

Name of Vessel :	Distinctive Numbers :
Registration Number :	Port of Registry :
IMO Number (If Available) :	Date of Build* :
Hull No :	Hull Material :
Length :	Propulsion :
Installed Power :	Fuel :
Gross Tonnage :	Net Tonnage :

* Date on which the Keel was laid or at similar stage of construction or where applicable date on which work for conversion or an alteration or modification of a major character was commenced

Details of Registered Ownership

Name(s) of Owner	Address(es) of Owner	Shares held
------------------	----------------------	-------------

I hereby certify that the details of the ship and registered ownership listed on this certificate are in accordance with the

details registered in the Register of Non-Convention Vessels

Provisional and Temporary Operational Registration certificates are valid for six months from the date of issue

Issued at :Date of issue

Name/Signature of authorized officialSeal or stamp of certifying body

(Regulation 5(1))

SCHEDULE III

Applicable Fees

Non-Convention vessel- Trading Internationally

1.	Registration fees	
	(a) Small vessel (up to 24 meters)	US \$ 500 plus US \$ 1 per NT
	(b) Large Non-Convention vessel (over 24 meters)	US \$ 750 plus US \$ 1 per NT
2.	Provisional Registration (valid for 6 months)	
	(a) Small vessel (up to 24 meters)	US \$ 200
	(b) Large Non-Convention vessel (over 24 meters)	US \$ 400
3.	Temporary Operational Registration	
	(a) Small vessel (up to 24 meters)	US \$ 250 plus US \$ 1 per NT
	(b) Large Non-Convention vessel (over 24 meters)	US \$ 400 plus US \$ 1 per NT
4.	Re-issuance of registration certificate (After change of ownership or substantial alteration)	US \$ 300 plus US \$ 1 per NT
5.	Issue of Certification	
	(a) Small vessel Code Certificate	US \$ 150
	(b) Large Non-Convention vessel Code Certificate	US \$ 200
	(c) Other statutory certificates	US \$ 150 each

6. Survey Fees

(a) Annual Survey Fees

- | | |
|---|-----------|
| (i) Small vessel (up to 24 meters) | US \$ 200 |
| (ii) Large Non-Convention vessel (over 24 meters) | US \$ 350 |

(b) Renewal and Special Survey fees

- | | |
|---|-----------|
| (i) Small vessel (up to 24 meters) | US \$ 350 |
| (ii) Large Non-Convention vessel (over 24 meters) | US \$ 500 |

Non-Convention Vessels trading in Sri Lanka waters

1. Registration fees

- | | |
|--|-------------------------------|
| (a) Internal Waters Craft | US \$ 75 plus US \$ 1 per NT |
| (b) Small vessel (up to 24 meters) | US \$ 250 plus US \$ 1 per NT |
| (c) Large Non-Convention vessel (over 24 meters) | US \$ 500 plus US \$ 1 per NT |

2. Provisional Registration (valid for 6 months)

- | | |
|--|-----------|
| (a) Internal Waters craft | US \$ 25 |
| (b) Small vessel (up to 24 meters) | US \$ 100 |
| (c) Large Non-Convention vessel (over 24 meters) | US \$ 250 |

3. Temporary Operational Registration

- | | |
|--|-------------------------------|
| (a) Internal Waters Craft | US \$ 75 plus US \$ 1 per NT |
| (b) Small vessel (up to 24 meters) | US \$ 100 plus US \$ 1 per NT |
| (c) Large Non-Convention vessel (over 24 meters) | US \$ 200 plus US \$ 1 per NT |

4. Re-issuance of registration certificate
(After change of ownership or substantial alteration)

US \$ 150 plus US \$ 1 per NT

5. Issue of Certification

(a) Internal Waters Craft Code Certificate	US \$ 75
(b) Small vessel Code Certificate	US \$ 100
(c) Large Non-Convention vessel Code Certificate	US \$ 150
(d) Other statutory certificates	US \$ 100 each

6. Survey Fees

Annual Survey Fees

(a) Internal Waters Craft	US \$ 80
(b) Small vessel (up to 24 meters)	US \$ 150
(c) Large Non-Convention vessel (over 24 meters)	US \$ 250

Renewal and Special Survey fees

(a) Internal Waters Craft	US \$ 100
(b) Small vessel (up to 24 meters)	US \$ 200
(c) Large Non-Convention vessel (over 24 meters)	US \$ 350

US \$ 150

7. Issue of Record of Compliance document for private vessels [Group 4]
– Vessels in private use for sport or pleasure (not for hire)

SCHEDULE IV

(Regulation 22(3))

MSS	Merchant Shipping Secretariat Ship Registration and Safety Unit Accident Report Form		
		Document No.	SR-FO-11
		Date of 1 st issue	2015-12-28
		Reviewed by	MR
		Approved by	DGMS
		Revised status	0
		Revised date	

REPORT OF VESSEL CASUALTY OR ACCIDENT

I. PARTICULARS OF THE VESSEL

1. Name of Vessel/Flag :	2. IMO Number :	3. Year built :	4. Gross Tonnage :	5. Net Tonnage :
6. Type of Vessel :	7. Propulsion :	8. Place Built :		
9. Name of Owner :	10. Name, Address and Telephone of Management Company :			
11. (a) Name of master or person in charge :	(b) Citizenship :	(c) Date of Birth :	(d) Address :	

II. PARTICULARS OF CASUALTY

12.(a) Date of Casualty :	(b) Time (Local or Zone)	(c) UTC :	(d) Time of Day : Day Night Twilight	
13.Geographical Position of Casualty Latitude: Longitude:			14.Geographical location :	
15.(a) If Casualty occurred underway, Port of Departure :		(b) Date of Departure:	(c) Port to Which Bound :	
16. (a) Nature of Cargo (Describe and give amounts in Long Tons) :		(b) Amount of Dry Cargo :	(c) Amount of Bulk Liquid :	(d)Amount of Deck Cargo :
17. Speed in Knots Prior to Casualty :	18. True Course Prior to Casualty:		19.Draft Forward :	20.Draft Aft :
21. Atmospheric Conditions at Time of Casualty : Clear Partly Cloudy Overcast Fog Rain Snow Other (Specify)				
22. Distance of visibility: Under two Miles 2-5 Miles Over 5 Miles	23. Wind: Light Moderate to Fresh Storm to Hurricane	24. Sea : Smooth to Slight Moderate to Rough High	25. Wind Direction	
			26. Direction of Sea:	
			27. Direction of Swell:	
28. Navigation Equipment (Check one or more of the following) : Radar				

MSS	Merchant Shipping Secretariat Ship Registration and Safety Unit Accident Report Form	Document No.	SR-FO-10
		Date of 1 st issue	2015-12-28
		Reviewed by	MR
		Approved by	DGMS
		Revised status	0
		Revised date	

32. INCIDENT TYPE (INITIAL CASUALTY EVENT)

A	Collision	Striking another Ship (Regardless of whether underway, anchored, moored)
B	Stranding/Grounding	Being aground or touching shore or sea bottom or underwater objects (wrecks)
C	Contact	Striking any fixed or floating object other than those included in Collision
D	Fire or Explosion	
E	Hull Failure	Not caused by any of the above
F	Machinery Damage	Which necessitated towage or shore assistance
G	Damages to Ship	Not caused by any of the above
H	Capsizing/ Listing	Not caused by any of the above
I	Missing: Assumed Lost	
J	Labour	
K	Other	Any other NOT covered by any of the above

33. DESCRIPTION OF CASUALTY (Events and circumstances leading to casualty and present when it occurred. Attach diagram and additional sheets, if necessary)

34.Number of Personnel	Crew	Passengers	Other	Total	35. Estimated Property Losses
(a) On Board					(a) To vessel
(b) Dead					(b) To cargo
(c) Missing					(c) To other property
(d) Injured					36. Is Vessel a Total Loss? Yes No

37.Remarks (Indicate assistance rendered by shore stations and vessels; recommendations for corrective safety measures. Attach additional sheets, if necessary)

38. Deck Officer on Duty at Time of Casualty :		39.Engineer on Duty at Time of Casualty :	
Name :		Name :	
Capacity :	Licence No. :	Capacity :	License No. :
40. Date of Report :	41. Submitted by (Print name) :		42. Signature :
			43.Title :

MSS	Merchant Shipping Secretariat Ship Registration and Safety Unit Accident Report Form	Document No.	SR-FO-11
		Date of 1 st issue	2015-12-28
		Reviewed by	MR
		Approved by	DGMS
		Revised status	0
		Revised date	

REPORT OF PERSONAL INJURY OR LOSS OF LIFE			
I. PARTICULARS OF VESSEL			
1. Name of Vessel :		2. IMO Number :	3. Name, Address and Telephone, Tel/ fax No. of Management Company :
4. Type of Vessel :		5. Propulsion :	
6. Name and address of Owner :			
II. PARTICULARS OF PERSON INJURED, DECEASED OR MISSING (Believed dead)			
7.(a) Name of Person :		(b) Home Address :	(c) Date of Birth :
			(c) Citizenship :
8. Seaman's Book or Passport No. :		9. Status or Capacity on Vessel :	
10. Activity Engaged in at Time of Casualty :		11. If Crew Member or Shore Worker :	
		On Watch Working Other	
12. (a) Name of Immediate Supervisor at Time of Casualty :		(b) Supervisor's capacity or Status on Vessel	
III. PARTICULARS OF CASUALTY OR ACCIDENT			
13.(a) Date of Casualty :		(b) Time (Local or Zone) :	(c) UTC :
			(d) Time of Day : Day Night Twilight
14. Geographical Location of Vessel at time of Casualty :			
15.(a) If Casualty occurred underway, Port of Departure :		(b) Date of Departure :	(c) Port to Which Bound :
16.(a) Result Of Casualty:			
Injury Death Missing (Complete INJURY or DEATH entries below, as appropriate)			
(b) Nature of Injury :			(c) Total Days Incapacitated :
(d) Reason for Death :			(e) Location of Individual at Death :
			(f) Date of Death :

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		Approved by	DGMS
		Revised status	0
		Revised date	

Description Of Casualty (Give events leading up to casualty and how it occurred. Attach diagram and additional sheets, if necessary) :

17. Witnesses to Accident (At least two, if possible) :

Name :	Name :
Address :	Address :
Name :	Name :
Address :	Address :

IV. ASSISTANCE AND RECOMMENDATIONS

18.(a) MEDICO (Medical) MESSAGE SENT :	(b) IF YES, GIVE DATE OF FIRST MESSAGE :	(c) IF YES, GIVE TIME OF FIRST MESSAGE : (Local or zone and description)
19.(a) TREATMENT ADMINISTERED :	(b) IF YES, BY WHOM :	
Yes No	Ship's Doctor Other Ships 'Personnel Other (Specify)	

20. BRIEFLY DESCRIBE TREATMENT (If administered by other than M.D) :

21. (a) Name of Hospital, If Person was Hospitalized :	(b) Address of Hospital :
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22. Recommendations for Corrective Safety Measures Pertinent to this Casualty :

23. Date of Report :	24. Submitted by (Print Name) :	25. Signature :	26. Title :
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SCHEDULE V

(Regulation 27(10))

Recommended Emergency Instructions Format

An emergency instruction placard containing the following information will satisfy the requirements of clause 77.

EMERGENCY INSTRUCTIONS

Rough weather at sea, crossing hazardous bars or flooding :-

1. Close all watertight and weather tight doors, hatches, and air pipes to prevent taking water aboard.
2. Keep bilges dry to prevent loss of stability due to water in bilges. Use power driven bilge pump, hand pump, and buckets to dewater.
3. Arrange fire pumps to be used as bilge pumps where permitted.
4. Check all intake and discharge lines, which penetrate the hull, for leakage.
5. Passengers shall remain seated and evenly distributed as directed by the master.
6. Passengers shall wear life jackets when instructed by the master.
7. Where assistance is needed follow the procedures on the emergency broadcast placard posted by the radio-telephone.
8. Prepare survival craft (life floats), (inflatable) rafts, (inflatable) buoyant apparatus, boats for launching.
9. Instructions to abandon the vessel shall not be given unless in the opinion of the master the risk of persons remaining on board exceeds the risk of evacuating the vessel.

Man overboard :-

1. Throw a life buoy overboard as close to the person as possible.
2. Post a lookout to keep the person overboard in sight.
3. Launch the rescue boat and manoeuvre to pick up person in the water or manoeuvre the vessel to pick up the person in the water.
4. Have a crew member put on lifejacket, attach a safety line to the member, and have the member stand by ready to jump into the water to assist the person overboard if necessary.
5. Where person is not immediately located, notify Sri Lanka Navy and other vessels in vicinity by radio-telephone.
6. Continue search until released by Sri Lanka Navy or where the master considers it impracticable to continue the search.

Fire :-

1. Cut off air supply to fire – close items such as hatches, ports, doors, ventilators, and louvers, and shut off ventilation system.
2. Cut off electrical system supplying affected compartment if possible.
3. Deploy the fixed fire extinguishing system where fitted.
4. Where safe, immediately use portable fire extinguishers at base of flames for flammable liquid or grease fires or water for fires in ordinary combustible materials. Do not use water on electrical fire.
5. Where fire is in machinery spaces, shut off fuel supply and ventilation and activate fixed extinguishing system if installed.
6. Manoeuvre vessel to minimize effect of wind on fire.
7. Where unable to control fire, immediately notify the Sri Lanka Navy and other craft in the vicinity by radio-telephone.
8. Move passengers away from fire, have them put on lifejackets, and where necessary, prepare to abandon the vessel.

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